MAKING OF THE CONSTITUTION

Constituent authority -> Assembly design -> deliberation -> constitutional legitimacy

01 DEMAND, 1934-1946

Roy 1934 -> Congress 1935 -> Nehru adult franchise 1938
August Offer 1940 -> Cripps 1942 -> Cabinet Mission 1946
TRAP: proposal, demand, acceptance and operative scheme are different stages.

02 CABINET MISSION DESIGN

389 = 296 British India + 93 states; roughly one seat per million.
Provincial community MLAs elected by PR-STV; rulers nominated state members.
VERDICT: indirect, partly nominated and based on a restricted franchise.

03 COMPOSITION AND PARTITION

Congress 208 | League 73 | others 15.
Official opening register: 207 present; older local textbook: 211.
After Partition: 299 = 229 + 70. Signatories on 24 Jan 1950: 284.

04 OFFICERS AND OBJECTIVES

Sinha temporary | Prasad permanent | Rau adviser | Iyengar secretary | Mukerjee draftsman.
Nehru moved Objectives Resolution 13 Dec 1946; Assembly adopted it 22 Jan 1947.
Modified value form -> Preamble.

05 SOVEREIGNTY UPGRADE

1946: British-framed institutional origin.
Indian Independence Act 1947: external legal subordination removed.
Result: sovereign constituent body + Dominion legislature; representative limits remained.

06 COMMITTEE ARCHITECTURE

Nehru: Union Powers / Union Constitution / States.
Patel: Provincial / Advisory. Prasad: Rules / Steering. Ambedkar: Drafting.
Specialist rights, minority and tribal subcommittees -> plenary authority.

07 DISTRIBUTED AUTHORSHIP

Rau advised -> seven-member Drafting Committee integrated.
Ambedkar chaired and piloted -> Assembly debated, amended and adopted.
S.N. Mukerjee supplied technical drafting; no solitary-author myth.

08 DRAFTS, READINGS, FINAL DATES

Feb 1948 public Draft -> Oct 1948 revision -> three readings.
ADOPTED 26 Nov 1949 -> SIGNED 24 Jan 1950 -> COMMENCED 26 Jan 1950.
Public comments and clause scrutiny linked drafting to deliberation.

09 ARTICLES 393-395

Article 393: short title.
Article 394: named provisions at once; remainder on 26 January 1950.
Article 395: repeal of the 1935 and 1947 Acts. Adoption is not commencement.

10 DELIBERATION METRICS

Sansad: 11 sessions | 165 sitting days | 114 Draft days.
Drafting Committee: 141 days. Official record: 7,635 proposed | 2,473 moved.
SOURCE RULE: elapsed duration differs by one day across official/textbook summaries.

11 REPRESENTATION AND CRITIQUE

Deficits: restricted franchise | nomination | Congress dominance | boycott | imbalance.
Named voices and committee channels deepen deliberative representation.
Reply: 1947 sovereignty + public reasoning + universal-franchise output; limits remain.

12 ANSWER AND PYQ CONTROL

Claim -> named evidence -> analysis -> qualification -> graded verdict.
Four objective PYQs; only 2024 locally has a final official answer key.
CA Debates are persuasive historical aids; enacted text and binding doctrine control.

QUALIFIED VERDICT: electorally limited at origin; sovereign after 1947; legitimacy earned through plural deliberation and a universal-democratic constitutional settlement.